

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #7	CCRB Case #: 201706564	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/09/2017 6:23 PM	Location of Incident: 610 Exterior Street	Precinct: 44	18 Mo. SOL 2/9/2019	EO SOL 2/9/2019	
Date/Time CV Reported Thu, 08/10/2017 2:34 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 08/10/2017 2:34 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marcin Steckiewicz	17677	955529	SRG 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Frank Gesualdi	00000	915099	DIS CTL

Officer(s)	Allegation	Investigator Recommendation
A.POM Marcin Steckiewicz	Abuse: Police Officer Marcin Steckiewicz threatened to issue a summons to § 87(2)(b)	

Case Summary

On August 10, 2017, § 87(2)(b) filed this complaint with the CCRB via the On-line website. On August 9, 2017, at approximately 6:23 p.m., § 87(2)(b) was traveling southbound on Exterior Street, near the Bronx Terminal Market, when he observed an unmarked Chevrolet Impala, containing PO Marcin Steckiewicz of the Strategic Response Group 3 (SRG3) and Lieutenant Frank Gesualdi of the Disorder Control Unit (DIS CTL). While waiting on the red light, § 87(2)(b) briefly interacted with PO Steckiewicz, who pulled up next to § 87(2)(b) vehicle and without exiting the RMP, told him that it was illegal not to yield to an emergency vehicle and that he could issue him a ticket (**Allegation A**). § 87(2)(b) was not arrested or issued any summonses as a result of this incident.

The investigation did not obtain any video footage as the exact incident location was unknown during the preliminary stages of the investigation.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of October 4, 2017, there was no Notice of Claim filed for this complaint (Board Review 02).

Civilian and Officer CCRB Histories

- This is § 87(2)(b) first complaint with the CCRB (Board Review 03).
- PO Steckiewicz has been a member of the service for four years. He has been a subject of four prior allegations, stemming from three complaints, § 87(2)(g) (Board Review 04).
 - § 87(2)(g), § 87(4-b)

Potential Issues

- The investigation did not obtain a statement from § 87(2)(b) son, who was present in the vehicle during the incident. § 87(2)(b) refused to provide his son's name and contact information to the CCRB. He elaborated that his son was most likely asleep during the incident and would not have witnessed any FADO allegations.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) took a photograph of the RMP the officers were operating, which he provided to the CCRB via email (Board Review 05). The photograph depicted a black Chevrolet Impala with the New York State license plate § 87(2)(e), § 87(2)(g). IAB identified this vehicle as RMP # § 87(2)(b) which at the time of the incident was assigned to Strategic Response Group Disorder Control Unit. The IAB also identified the occupants of said RMP as PO Steckiewicz of SRG3 and Lieutenant Gesualdi of DIS CTL (Board Review 06 and 07). Additionally, PO Steckiewicz's memo book listed RMP § 87(2)(b) as his vehicle during the day of the incident (Board Review 08).

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: Police Officer Marcin Steckiewicz threatened to issue a summons to § 87(2)(b)

§ 87(2)(b) stated as he drove on Exterior Street, he observed a black Chevrolet Impala attempt to merge into his lane. § 87(2)(b) did not allow the vehicle to cut him off and continued driving southbound until he stopped at a red light. As he waited for the light to change, he observed the Impala utilize its lights and sirens and pull up parallel to his vehicle. The driver of the Impala, identified via the investigation as PO Steckiewicz, rolled down his window and motioned for § 87(2)(b) to pull over. § 87(2)(b) did not move his vehicle and PO Steckiewicz allegedly told him that it was illegal not to give way to an emergency vehicle and stated that he could give him a ticket. PO Steckiewicz drove away from the intersection once the traffic light changed and his interaction with § 87(2)(b) lasted less than twenty seconds (Board Review 09).

PO Steckiewicz had no independent recollection of this incident and did not recognize § 87(2)(b) from his CCRB photograph. Upon being given information about the complaint, PO Steckiewicz stated that he vaguely remembered the incident and that he had a “passing interaction” with § 87(2)(b) which lasted between two to five seconds. PO Steckiewicz remembered telling § 87(2)(b) that he nearly hit a police vehicle and denied making any subsequent statements to him. PO Steckiewicz did not tell § 87(2)(b) that he could give him a ticket and did not make any other threats to summons him. PO Steckiewicz further stated that neither he nor Lieutenant Gesualdi carry summons books (Board Review 10).

Lieutenant Gesualdi had no independent recollection of this incident and did not recognize § 87(2)(b) from his CCRB photograph. Lieutenant Gesualdi stated that his command was about half a mile away from the Bronx Terminal Market and that he may have been on Exterior Street around the time of the incident. He confirmed that PO Steckiewicz was the operator of the RMP, however, he did not recall PO Steckiewicz tell anyone that it was illegal not to yield to an emergency vehicle. Lieutenant Gesualdi did not hear PO Steckiewicz tell any motorists that he could give them a ticket and did not hear him make any other threats to summons motorists. Lieutenant Gesualdi explained that due to the nature of their assignment, he and PO Steckiewicz did not carry summons books (Board Review 11).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 7

Investigator: _____ FILIP WORONIECKI 11/09/2017
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date